HH - 409-26

HCH 4105/25

MAXWELL MATAMBO

And

FANUEL MAGUSA

And

BEAUTY NYERENYERE

And

PLAXEDES MATSHEZHA

And

FORGET MWEDZIWENDIRA

And

TATENDA MAYENYA

Versus

CITY OF HARARE

And

MINISTER OF LOCAL GOVERNMENT, PUBLIC WORKS AND NATIONAL HOUSING

And

ATTORNEY-GENERAL OF ZIMBABWE

And

MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 27 May, 4 June 2026

K. TUNDU, for the applicant.

UNOPPOSED MATTER

CHIRAWU-MUGOMBA J

INTRODUCTION

I dealt with this matter on the unopposed roll, on the 27th of May 2026. I took the legal practitioner for the applicant, *K. Tundu* to task on the propriety of seeking declarations of constitutional invalidity of laws through an urgent chamber application. He was unable to convince me that this course of action is proper. I then reserved judgment. Upon retiring to my chambers, I caused a letter to be addressed to the applicant's legal practitioners to file heads of argument in support of the application and specifically the issue that I raised with him. Seeking constitutional invalidity of laws in my view is not a walk in the park. As matters stand, the deadline for the filing of the heads, that is the 3rd of June 2026 passed with no heads of argument coming from the applicants' legal practitioners. Therefore this judgment is written without the benefit of legal arguments from them.

BACKGROUND

On the face of the court application is a document headed, ' court application for default judgment'. That is a matter for another day. What is critical to note is that the matter is unopposed. On the 18th of August 2025, the applicants approached this court on an urgent chamber application basis seeking an interim interdict and declaration of constitutional invalidity. The gist of the application as particularised by the first applicant is that they sought an interim interdict suspending the operation of the notice issued to the applicants by the first respondent in terms of s18(2) of the Urban Councils (Model) (Use and Occupation of Land and Buildings) By-Laws of 1979, S.I 109/1979 (the model law)pending finalisation of this matter. They also sought an interim order barring and prohibiting the first respondent from demolishing their homes in Kuwadzana Extension, Harare without a court order and pending finalisation of the matter.

Additionally, the applicants seek a final order declaring s18(2), 16(4), s19(1) (2) of the model law to be declared inconsistent with s74 of the constitution. For purposes of this judgment, perhaps the facts are not very relevant at this stage but the propriety of seeking a declaration on constitutional invalidity on the basis of an urgent chamber application. It appears that a provisional order was granted on the 21st of August 2025 but was only issued on the 6th of November 2025. Nonetheless, the following captures the essence of the provisional order.

TERMS OF THE FINAL ORDER

The respondents should show cause, if any why a final order should not be made in the following terms:-

1. The provisional order be and is hereby confirmed.
2. It is hereby declared that section 18(4) of the Urban Councils (Model) (Use and Occupation of Land and By-Laws of 1979, S.I 109 of 1979 are inconsistent with section 74 of the Constitution and are therefore constitutionally invalid.
3. It is hereby declared that section 19(1) and section 19(2) of the Urban Councils (Model) (Use and Occupation of Land and By-Laws are inconsistent with section 74 of the Constitution and are therefore constitutionally invalid.
4. The notice issued to the applicants by the 1st respondents on 13 August 2025 in terms of s18(2) of the Urban Councils (Model) (Use and Occupation of Land and By-Laws, 1979 be and is hereby declared to be invalid and therefore set aside.
5. There shall be no order as to costs.

TERMS OF INTERIM RELIEF

It is hereby ordered that , pending the finalization of this matter on the return date by this Honourable Court:-

1. The operation of the notices served onto the applicants by the 1st respondent in terms of section 18(2) of the Urban Councils (Model) (Use and Occupation of Land and By-Laws, 1979, S.I 109 of 1979 be and is hereby suspended.
2. The 1st respondent be and is hereby ordered not to evict the 1st, 2nd, 3rd, 4th, 5th and 6th applicants from their homes in Kuwadzana Extension, Harare under the Kuwadzana Extension South Pay Scheme and or demolish the 1st, 2nd, 3rd, 4th, 5th and 6th applicants'

homes in Kuwadzana Extension, Harare under the Kuwadzana Extension South Pay Scheme.

The provisional order was served on the respondents and no opposition was filed. At the hearing, therefore, the applicants sought confirmation of the provisional order.

THE LAW

There is a plethora of cases in this jurisdiction on matters on constitutional invalidity of laws. It is trite that the jurisdiction of this court to decide on constitutional matters derives from s171(c) of the constitution. This jurisdiction is only limited in instances in which only the Constitutional Court has exclusive jurisdiction.

Per GARWE JCC in *Combined Harare Residents Association and ors, v. The Minister of Local Government, Public Works and National Housing,CCZ-03-24,*

> "In order to give effect to s 171 one must then look at the High Court Act and the rules of court made thereunder. Section 56 (1) of the High Court Act, [*Chapter 7:06*] gives the Chief Justice the power to make rules of court for the regulation of all matters in relation to proceedings of the High Court. In terms of s 56 (2) (aa), rules of court may give full effect to the jurisdiction conferred upon the High Court by any enactment.
>
> "Rule 107 of the High Court Rules, 2020, in turn, provides as follows:
>
> > "(l) A party who intends to raise a constitutional issue before the Court should do so by court application filed with the registrar ..."
>
> The rule then proceeds to lay down the procedure to be followed by a party wishing to raise a constitutional issue before the Court as well as on the set down of the matter before the Court by the registrar. Rule 59 then provides that a court application shall be in form No 23 and shall be supported by one or more affidavits setting out the facts upon which the applicant relies".

What is also critical to note is that if the High Court declares a law to be constitutionally invalid, this must be followed by a process of confirmation of the invalidity as per s175(1) of the constitution. Per MAKARAU JCC in *Combined Harare Residents Association and ors, (supra)*

> "By deliberate design aimed at ensuring consistency and certainty in the interpretation of the Constitution, it is an imperative of constitutional litigation in this jurisdiction that an order concerning the constitutional invalidity of any law or conduct of the President or Parliament made by any court, must be confirmed by this Court. Unless so confirmed, such order has no force or effect. In turn, the Rules of this Court set out a procedure that directs the clerk or registrar of the court making such an order to place the relevant record of proceedings before this court for the confirmation of the order. Acting in accordance with this procedure, the Registrar of the High Court placed this matter before the Court for an appropriate order.

Further that,

> "Confirmation proceedings before this Court are essentially a validation not only of the ultimate order of invalidity made, but of the process by which such an order was made and, the competence of the court that made the order. Put differently, before confirming an order of constitutional invalidity, this Court must be satisfied that the order of constitutional invalidity was not only properly raised before the court *a quo*, but that it was correctly made by that court and represents a correct interpretation of the Constitution. (See *S v Chokuramba* CCZ 10/19 and *Mupungu v Minister of Justice Legal & Parliamentary Affairs and Others* CCZ 7/21)".

APPLICATION OF THE LAW TO THE FACTS

The issue to be considered is whether or not there is a constitutional application before the court. In my view, there is no such application. Whilst this court enjoys constitutional jurisdiction, the law is very clear in R107 of the High Court Rules of 2021 that a constitutional matter commences with a court application and **NOT** an urgent chamber application.(my emphasis). What was placed before the court is an application for an interim interdict and this explains why the affidavits are replete with reference to the requirements of granting such. In my view, justice would turn on its head if litigants were allowed to seek constitutional invalidity of laws through the medium of an urgent chamber application.

I also note that in the terms of the final order sought, there is no reference to the confirmation process of a declaration of invalidity. That alone is telling, that the applicants did not place any constitutional matter before this court. As a Judge, I must state that I have seen my fair share of litigation but this approach taken by the applicants' legal practitioners induced a sense of shock and evinces a lack of understanding of constitutional litigation. I was also equally surprised that none of the respondents took an active part in this matter.

On costs, having found that there is no constitutional matter before the court, there is no justification for awarding applicants any costs even though the matter is unopposed.

DISPOSITION

1. The provisional order be and is hereby discharged.

2. There shall be no order as to costs.

Tundu Law Chambers, applicants' legal practitioners